

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES II
HEARING DATE: 12/03/2025

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why**. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Law & Motion

1. 9:00 AM CASE NUMBER: C23-00520
CASE NAME: JANE DOE VS. PROSPECT SIERRA SCHOOL
*HEARING ON MINOR'S COMPROMISE RE: JANE DOE

FILED BY: DOE, JANE

TENTATIVE RULING:

Summary

Petitioner Rachel Calahong-Monzon's Petition for Approval of Compromise of Minor Jane Doe ("Minor"), filed on August 15, 2025, is **granted**, as set forth below. No appearance is required at the hearing on December 3, 2025.

Background

On August 15, 2025, Petitioner Rachel Calahong-Monzon's, parent and guardian *ad litem* for her

daughter, Jane Doe (DOB 7/21/2009), filed this Petition through counsel Seth Rosenberg, Esq., to compromise the claim that Minor had against Prospect Sierra School related to an incident that occurred on December 13, 2021 in El Cerrito, CA. In that incident, Minor sustained injuries after being assaulted by a student. Petitioner represents that Minor sustained emotional distress and received treatment. She has not fully recovered. Minor and Petitioner entered into a settlement agreement disposing of this litigation.

Pursuant to the settlement agreement, Prospect Sierra offered the amount of \$115,000, of which \$55,955 is to be invested into a single premium deferred annuity that will yield future distributions to Minor in the amount of \$80,960. The deduction of \$59,044.42 represents a deduction from the settlement used to satisfy expenses and to pay for attorney's fees incurred.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is **granted**. The Court will execute the Proposed Order Approving Compromise of Minor's Claim lodged on August 15, 2025. Counsel is directed to take all necessary steps to effectuate the settlement agreement. No appearance is required on December 3, 2025.

2. 9:00 AM CASE NUMBER: C23-02219

CASE NAME: LORENA FLORES VS. LUIS FERNANDO ESPINOZA

***HEARING ON MINOR'S COMPROMISE RE: KONNOR BENJAMIN AFZAL KHAN**

FILED BY: FLORES, LORENA VANESSA

TENTATIVE RULING:

Summary

Petitioner Nataly Duran ("Petitioner") Petition for Approval of Compromise of Connor Benjamin Afzal Khan ("Khan"), an adult person with disability, filed on August 5, 2025, is **granted**, as set forth below. No appearance is required at the hearing on December 3, 2025.

Background

On August 5, 2025, Petitioner, who is guardian *ad litem* for Khan, filed the Petition through Plaintiff's counsel Steven J. Brady, Esq., to compromise the claim that Khan had against Anna Marie Aparicio and Luis Fernando Garia Espinoza, related to an accident that occurred on September 10, 2021 in Antioch, CA. In that accident, Khan lost his father, Eqbal Afzal Khan. Mr. Khan suffered the loss of love, companionship, comfort, care, assistance, protection, affection, society, moral support, advice and guidance of his father. The Defendants collectively offered settlement in the amount of \$50,000 and the insurance carrier of Khan's father offered \$450,000 in uninsured motorist policy benefits.

Plaintiff/Claimant, Lorena Vanessa Flores, the widow of Konnor Benjamin Afzal Khan's father will receive 50% of the \$500,000.00 of settlement proceeds. Decedent, Eqbal Afzal Khan's three biological children, including Khan, will each receive 16.66% of the settlement proceeds or \$83,333.33 less attorney fees and costs.

Of the \$83,333 to be paid to Khan, \$55,573.50 be placed into a special needs trust account authorized